

Brij Mohan Agrawal v. Paschimanchal Vidyut Vitran Nigam Ltd. & Another

Allahabad High Court · Division Bench · 30 October 2015 · Writ - C No. 59836 of 2015 · **Writ disposed of; petitioner relegated to Clause 6.5**

HEADNOTE

A consumer who challenges an electricity bill of Rs.231834/- and seeks a writ quashing the bill or restraining disconnection is relegated to Clause 6.5 of the U.P. Electricity Supply Code, 2005. If the consumer applies under that clause after completing the formalities within 1 month, the Executive Engineer is to consider and decide it in accordance with law. The Court does not examine the bill.

FACTUAL SUMMARY

Brij Mohan Agrawal challenged an electricity bill of Rs.231834/-. The Court treated the grievance as one against an electricity bill and pointed the petitioner to Clause 6.5 before the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Billing objection — relegation to Clause 6.5

HOLDING

A writ seeking quashing of an electricity bill and/or a restraint on disconnection is disposed of without examining the bill. The consumer has a remedy before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If an application is made after completing the formalities within 1 month, it shall be considered and decided in accordance with law.

FLAG The order cites 'Clause 6.5 of the UP Electricity Supply Code, 2004'. The Code in force is the 2005 Code. Recorded, not silently corrected.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DISPUTED ELECTRICITY BILL

Left to the Clause 6.5 authority.